THE STATE
versus
LINA MWOYOWESHUMBA

HIGH COURT OF ZIMBABWE
MUZENDA AND SIZIBA JJ
MUTARE, 11 March 2026

CRIMINAL REVIEW

SIZIBA J:

1. This case found its way to my IECMS portal for purposes of automatic review of the criminal proceedings in terms of s 57 (1) of the Magistrates Court Act [*Chapter 7:10*] as read with s 29 (1) of the High Court Act [*Chapter 7:06*]. After going through the record of proceedings, my first impression was that the conviction of the accused person was not safe. A subsequent reading of the record confirmed this position. I then invited a comment from the Chief Public Prosecutor as to whether their office supported the conviction or not and the response was that they supported the conviction for reasons that I will revert to later on in this judgment.

2. The accused person is a female adult aged 24 years. She appeared unrepresented before the Senior Regional Magistrate in Mutare facing a charge of aggravated indecent assault in terms of section 66 (1) (b) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*]. She was convicted of the offence and on the 25th of February 2026, she was slapped with a jail term of 15 years. In terms of the charge against her, it was alleged that on the 23rd of September 2025 at Mambondiani Village, Chief Zimunya, Mutare, she, being a female adult, had unlawful sexual intercourse with the complainant who was a 14 - year - old male juvenile without his consent.

3. In terms of the outline of the State case, it was alleged that on the said date, the complainant went to water his vegetable garden and the accused followed him. She requested to have sexual intercourse with him and he refused. She forcibly lifted him and laid him on the ground facing upwards and removed his clothes and her short and

panty, she mounted on top of him and inserted his penis in to her vagina and had sexual intercourse with him once without his consent. The complainant screamed for help during the act and the accused closed his mouth with her hand. The complainant started passing bloody urine. He reported to his uncle. He was medically examined. The accused was then arrested.

4. On the other hand, the accused denied having had sexual intercourse with the complainant as alleged. She protested that she had requested to be medically examined since the complainant was found to be having a sexually transmitted infection but she was denied that chance by the people who were involved in the case. She also challenged the complainant in cross examination as to how he had had an erection and the complainant's reply was that she had rubbed his penis until it became erect.

5. The judgment of the court *a quo* reflects that the trial court was alive to the fact that the major disputed issues were whether the accused had had sexual intercourse with the complainant and also whether the complainant had consented to such sexual act.

6. The trial court correctly noted that it was common cause that on the 23rd of September 2025 the accused person requested for tomatoes from the complainant. The two then proceeded to the garden. There was one Simba (or Simon as he was also referred to on the record) who was present at the garden when they arrived. The accused and the complainant gave varying accounts as to what then happened to Simba later on. According to the complainant, Simba had left when the two engaged in sexual intercourse. According to the accused, Simba remained at the garden until they left. It was also common cause that there was a ditch or pit in the garden and that is the spot where the complainant alleged that the sexual act occurred. It was also common cause that on their way to the garden, there are people at the shops who remarked that the accused should not destroy the young man.

7. The complainant was medically examined on the 29th of September 2025 at Dora Clinic and a swelling on his penis was noted and he also complained of pain in urinating. When he was examined for the second time on 6 October 2025 at Mutare

Provincial Hospital, no injuries were noted and it was remarked that the evidence of penetration was inconclusive and difficult to ascertain in a male.

8. By the 23rd of September 2025, the complainant's uncle was away in Harare. He returned after about five days. He testified as the second State witness during the trial. He told the trial court that one Nigel visited him and asked him if he was aware that his nephew, meaning the complainant, was sick. He then asked the complainant if such was true. A direct reply to this simple question is not on record. He took him to the clinic. He noted what was inscribed on the clinical record at the clinic whereby the complainant had alleged that he had been forced to have sexual intercourse. He then spoke to him about it and reported the case to the police.

9. Apparently, the record shows that when the complainant started becoming sick, he was confronted by this boy called Nigel who works at the local shops and he denied that anything had happened to him. Nigel then told the complainant that he knew everything that had happened. It is this very boy Nigel who alerted the complainant's uncle upon his return from Harare that the complainant was sick.

10. The trial court was satisfied that the three requirements of a sexual complaint as highlighted in the cases of *S* v *Nyirenda* 2003 (2) ZLR 64 (H) and *S* v *Banana* 2000 (1) ZLR 607 (S) were met in this case. It found that the complainant had testified. It also found that the complainant had made a voluntary report to his uncle after five days when he returned from Harare. It reasoned that the accused person was denying just for the sake of denying. It also made a finding that there was no bad blood between the two and they also knew each other such that there was no issue of identity arising. It noted that the medical evidence proved that the complainant had an infection. It also held that the complainant said that he was not consenting and such was common cause. It concluded that no other person had sexual intercourse with the complainant apart from the accused. It then found that the State had proven its case beyond reasonable doubt.

11. The above findings by the trial court do not account for the material shortcomings in the case that was presented by the prosecution in the court below. When the Chief Public Prosecutor submitted that she supported the conviction, she premised her

submission upon the fact that the complainant was found having a swollen penis on the 29th of September 2025 and also upon the fact that both the complainant and the accused agreed to have been at the garden and that there was no bad blood between them.

12. What eluded both the trial magistrate and the Chief Public Prosecutor is that there was no report at all that the complainant made to his uncle. His uncle only confronted him about his alleged sickness after he was told by Nigel that his nephew was sick. The uncle only came to know of the details of what the complainant was alleging when he read the narration in the complainant's treatment card. The facts on the record do not support a finding that there was a voluntary report made by the complainant. There was none and since there was none, none could have been voluntary.

13. Another fact that needs to be appreciated from the evidence is that the complainant's illness or medical condition could not be linked to or traced to the accused person. To hold that the medical evidence which proved that the complainant had an infection had a bearing upon the disputed issues was a misdirection on the part of the trial court. The reason for that is simple. The accused was not medically examined nor found to be having any infection of any sort. The absence of bad blood between the accused and the complainant added nothing to the resolution of the disputed issues that were before the trial court. The same applies about the fact that there was no dispute on identity.

14. There is also a further worrisome issue in this case. Relevant, crucial and material witnesses being Simba (or Simon) and Nigel were not called by the State to testify and neither was any explanation given why these witnesses were not called. Simba would have clarified whether he remained at the garden until the complainant and the accused left as alleged by the accused person or whether he left them there as alleged by the complainant. Nigel is the one who told complainant's uncle that the complainant was sick and he boasted to the complainant that he knew everything. Where crucial witnesses have not been called to ventilate disputed material issues, the State cannot be said to have proved its case beyond reasonable doubt. This is so especially where there

is no explanation why such witnesses could not testify. In *Makala* v *The State* (2023) ZAFSHC 283, the court aptly stated thus:

"It is well established in our law that where the state fails to call relevant and available witnesses, who can support a party's case, the court may draw a negative inference. Where the state has failed to call a witness or witnesses whose evidence is essential for a just decision to be made, then the court has a duty to call such witness or witnesses, as it would be in the interests of justice to do so. The dictum of the court in R v Hepworth 1928 AD 265, made some 95 years ago is still relevant and holds true today. The court said at p277:

'A criminal trial is not a game where one side is entitled to claim the benefit of any omission or mistake made by the other side, and a judge's position in a criminal trial is not merely that of an umpire to see that the rules of the game are observed by both sides. A judge is an administrator of justice, he is not merely a figure head, he has not only to direct and control the proceedings according to recognised rules of procedure but to see that justice is done"'.

15. Having expressed this concern, the question which remains is whether the State managed to discharge the onus which rested upon it to prove that the accused did have sexual intercourse with the complainant and that she did so without his consent. I hold that this fact was not proved beyond reasonable doubt in the circumstances of this case. It is for these reasons that I have found that the accused person's conviction was not safe in this case and I cannot confirm it and as such I order as follows:
    (a) The judgment of the court *a quo* is set aside on review by this court and it is hereby substituted by the following:
    "The accused person is found not guilty and she is accordingly acquitted and discharged"

SIZIBA J

MUZENDA J agrees _____